

tained whether the subject can, by any legal process, enforce the performance of the trust. The *right* of the *cestui que trust* is sufficiently clear, but the defect lies in the *remedy* (a). A Court of Equity has no jurisdiction over the king's conscience, for that it is a power delegated by the king to the chancellor to exercise the king's equitable authority betwixt subject and subject (b). The old Court of Exchequer had, in its character of a court of revenue, an especial superintendence over the royal property; and it has been thought that through that channel a *cestui que trust* might indirectly obtain the relief to which, on the general principles of equity, he was confessedly entitled. No such jurisdiction, however, appears to have been known when Lord Hale was Chief Baron (c). Lord Hardwicke once observed in Chancery "I will not decree a trust against the Crown in *this Court*, but it is a notion established in courts of *revenue* by modern decisions that the king may be a royal trustee" (d); but the doctrine was still unsettled in the time of Lord Northington (e); and in a more recent case (f), it was decided that though the Court of Exchequer could decree the *possession* of the property according to the equitable title, it had no jurisdiction to direct the Crown to *convey* the legal estate.

The subject may undoubtedly appeal to the sovereign [*31] by presenting a petition of right (g), and it * cannot be supposed that the fountain of justice would not do justice (a).

(a) *Paulett v. Attorney-General*, Hard. 467, 469; *Burgess v. Wheate*, 1 Ed. 255; *Kildare v. Eustace*, 1 Vern. 439; [and see *Rustomjee v. The Queen*, 2 Q. B. D. 60, where it was held that in Sovereign acts, such as the making and performing of a treaty with another Sovereign, the Crown could not be a trustee for a subject].

(b) Said by counsel in *Paulett v. Attorney-General*, Hard. 468.

(c) See *Paulett v. Attorney-General*, Hard. 467, 469; and see *Wilkes' case*, Lane, 54.

(d) *Penn v. Lord Baltimore*, 1 Ves. 453; and see *Reeve v. Attorney-Gen-*

eral, 2 Atk. 224; *Hovenden v. Lord Annesley*, 2 Sch. & Lef. 617.

(e) See *Burgess v. Wheate*, 1 Ed. 255.

(f) *Hodge v. Attorney-General*, 3 Y. & C. 342.

(g) As to the transfer of the equity jurisdiction of the Court of Exchequer to the Court of Chancery, see 5 Vic. c. 5, s. 1; and *Attorney-General v. Corporation of London*, 8 Beav. 270, 1 H. L. Ca. 410. As to petitions of right, see 23 & 24 Vic. c. 34.

(a) *Scounden v. Hawley*, Comb. 172, *per* Dolben, J.; *Reeve v. Attorney-General*, cited *Penn v. Lord Baltimore*, 1 Ves. 446.